Can an individual who enters the jurisdiction on an Electronic Travel Authority (ETA) be lawfully included as a dependent on their spouse's onshore subclass 485 visa application?

Conversation Details

- A married couple, both Japanese citizens, currently hold subclass 500 student visas.
- The primary applicant's student visa expires on 27 January 2027.
- The spouse's student visa expires on 20 September 2026.
- The primary applicant plans to apply for a subclass 485 graduate visa in the post-higher education stream in December 2026 after completing a master's degree.
- The spouse plans to leave the country before their visa expires and wishes to be included as a dependent in the primary applicant's subclass 485 application.

Title

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Verified Answer

Commonwealth migration law governs the issue; Queensland does not materially alter the analysis. On the current text of the *Migration Regulations 1994* (Cth), the key provisions are reg 1.12 ("member of the family unit"), Schedule 1 item 1229 (valid application requirements for Class VC / subclass 485), Schedule 2 cls 485.311–485.314 and 485.411 (secondary criteria and grant circumstances), the subclass 601 ETA criteria/conditions, and the bridging visa provisions.

Short answer: yes, in principle an ETA holder can be included as the spouse/dependent in an **onshore combined** subclass 485 application, **but only if the spouse is physically in Australia when the combined application is lodged and the ETA is being used consistently with genuine visitor criteria. If** the primary applicant has **already lodged** the onshore 485 without the spouse, the better view on the current Regulations is that an adult spouse **cannot later be added** to that pending temporary Class VC application; the spouse would instead need to apply later as a separate secondary/subsequent entrant once the principal holds the 485.

The reason the first proposition is available is straightforward. A married spouse is a "member of the family unit" under reg 1.12(2)(a). For subclass 485 secondary applicants, cl 485.311(a) covers a person who is a member of the family unit of the primary 485 holder **and made a combined application** with that person; cl 485.312 then requires adequate health insurance from lodgment onward, and cls 485.313–485.314 impose the public interest and special return criteria. Nothing in those secondary criteria says the spouse must themselves hold a student visa. The student/eligible-student requirements in item 1229(4) are directed to the applicant **seeking to satisfy the primary criteria**, i.e. the principal applicant.

The location rule is the critical point. **I**tem 1229(3)(h) expressly allows a family-unit member to make a combined application with the primary applicant. But item 1229(3)(f)(i) only lets an applicant be in or outside Australia where the applicant is claiming to be a family member of a person who **already holds** the Class VC visa. **I**f that paragraph does not apply, item 1229(3)(g) requires the applicant to be **in Australia, but not in immigration clearance**, at the time of application. Applied to your facts: because the primary applicant proposes to lodge in **December 2026**, and the spouse's student visa expires on **20 September 2026**, the spouse cannot remain in Australia continuously on the student visa to that date; but they could re-enter before the December 2026 lodgment on another substantive visa, including an ETA, and be included in the **combined** onshore 485 application provided they are physically in Australia at lodgment.

The ETA itself does **not** impose a "no further stay" condition of the kind that would automatically block an onshore Class VC application. Current subclass 601 conditions are 8115, 8201, 8527 and 8528; 8503 is not among them. So, at the level of subclass 485 validity, an ETA is not disqualified merely because it is an ETA.

That said, the ETA route carries a real **visitor-intention risk**. Clause 601.212 requires the ETA applicant genuinely to intend to visit Australia temporarily as a tourist or for business visitor activity. Regulation 2.43(1)(ea) separately makes ETA cancellation available if, despite grant, the Minister is satisfied the holder did not have, or has ceased to have, an intention only to stay in or visit Australia temporarily for the tourism/business purposes for which the ETA was granted. Home Affairs' own guidance is consistent: visitor visas are for genuine visitors, the holder must intend to stay temporarily, and the visa may be cancelled if that is not true. So the legal answer is not that an ETA can be used as a migration "placeholder" without risk; rather, the 485 legislation does not bar inclusion of an ETA holder, but the ETA must itself be genuine on its own statutory footing.

The second, and practically important, point is that the current Regulations do **not** appear to permit an adult spouse to be added later to a pending temporary Class VC application. Regulation 2.08A allows later addition of a spouse/de facto partner to certain **permanent** applications. By contrast, reg 2.08B, for **temporary** visas including Class VC, only authorises later addition of a **dependent child**. Home Affairs also cautions that not all visas allow additional applicants to be added after lodgment. On the present text, therefore, the spouse should either: (a) be part of the original combined 485 application lodged in December 2026 while physically in Australia; or (b) if not included then, apply later as a separate secondary/subsequent entrant under cl 485.311(b) once the primary applicant already holds the 485. **I**tem 1229(3)(f)(i) then allows that later secondary applicant to apply from **inside or outside Australia**.

Two practical consequences follow. First, if the spouse lodges from an ETA, the ETA still carries condition 8115 (no work other than business visitor activity) and 8201 (study/training capped at 3 months). Secondly, if a Bridging A is generated from the onshore 485 application, the current text suggests the principal applicant who meets item 1229(4) gets BVA condition 8501 only, whereas in "any other case" the BVA carries forward applicable conditions including 8115. **I** read that as meaning an ETA-lodging **secondary** applicant may well remain subject to ETA-type work/study restrictions until 485 grant; Also, if the spouse departs Australia while only on a BVA, that bridging visa ceases; Home Affairs says only a BVB permits travel and re-entry while the substantive visa is pending.

Conclusion: on your facts, the spouse **can** lawfully be included in the primary applicant's **December 2026** onshore subclass 485 application **if** they re-enter Australia before lodgment on a valid ETA, are in Australia (not in immigration clearance) when the combined application is lodged, remain the applicant's spouse/member of the family unit, and satisfy the secondary criteria. However, that is not risk-free: the ETA must still be held and used as a genuine temporary visitor visa, and it is a poor vehicle if the real plan is simply to circumvent the spouse's **20 September 2026** student visa expiry. **I**f the primary 485 is lodged without the spouse, the current Regulations point away from any later "addition" of the adult spouse to that pending temporary application; the cleaner statutory route is a later standalone secondary/subsequent entrant application after the principal holds the 485.

Resources

- Migration Act 1958 (Cth)
- Migration Regulations 1994 (Cth)